IN THE HIGH COURT OF JUSTICE

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES

TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Claim No. HT-2026-000214

B E T W E E N :

BRACKEN COATINGS & SURFACE TECHNOLOGIES LIMITED

Claimant

- and -

MARLDON PROCESS SYSTEMS LIMITED

Defendant

PARTICULARS OF CLAIM

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1. The Claimant is a company incorporated in England and Wales which operates a metal surface-coating and finishing plant at Foundry Lane, Walsall WS2 9LT, and is a wholly-owned subsidiary of Bracken Group Limited.

2. The Defendant is a company incorporated in England and Wales which designs, manufactures and installs industrial water and effluent treatment plant.

3. By a contract in writing made on or about 14 March 2024, constituted by the Claimant's purchase order BG-PROC-2271 and the Defendant's quotation MQ-4471 (Revision C) (the "Contract"), the Defendant agreed to design, manufacture, supply, install and commission a bespoke membrane bioreactor effluent treatment system rated to 240 m³/day (the "System") at the Claimant's plant.

4. The contract price was £1,480,000 exclusive of VAT, payable by milestone instalments. The Claimant has paid £1,332,000, being all instalments save the final 10% retention referable to satisfactory completion of the performance demonstration test.

5. It was an express term (Clause 7 of MQ-4471 Rev C) that, on completion of a 30-day performance demonstration test, the System would achieve treated-effluent quality of not more than 20 mg/l chemical oxygen demand and not more than 10 mg/l total suspended solids, and would operate continuously at the rated throughput of 240 m³/day for not less than 30 consecutive days without intervention.

6. It was a further express term (Clause 11) that all goods and components forming part of the System would be new, of satisfactory quality and free from defects in design, materials and workmanship for 24 months from commissioning.

7. It was an implied term under section 13 of the Supply of Goods and Services Act 1982 that the System would be reasonably fit for the purpose made known to the Defendant, namely the continuous treatment of metal-finishing process effluent to the Claimant's discharge-consent standard; and under section 4 of that Act that the goods would be of satisfactory quality.

8. In breach of the said terms the System has at no time achieved the contractual performance. The particulars of breach are that: (a) the ultrafiltration membrane modules were materially undersized for

the organic loading of the Claimant's effluent and suffered repeated, irrecoverable fouling; (b) the permeate-transfer pumps were fitted with mechanical seals and elastomers incompatible with the duty and chemistry of the application and failed repeatedly; (c) the System never achieved the contractual treated-effluent quality, COD readings routinely exceeding 60 mg/l; and (d) between November 2024 and August 2025 the System failed on eleven separate occasions, each requiring the Claimant to shut down its coating lines.

9. The defects are defects of design and specification for which the Defendant, as designer and supplier of a bespoke turnkey system, was wholly responsible. The Defendant attended site on six occasions but failed to remedy the defects.

10. The Defendant's breaches went to the root of the Contract. By letter dated 12 September 2025 the Claimant accepted the Defendant's repudiatory breach and terminated the Contract, and has procured a replacement system from an alternative supplier.

11. By reason of the matters aforesaid the Claimant has suffered loss and damage, particulars of which are set out in the Schedule of Loss and summarised as follows: remedial works £642,000; cost of replacement treatment system £915,000; lost production during line shutdowns £558,000; and investigation costs £50,000; totalling £2,165,000. The loss of production was within the reasonable contemplation of the parties at the time of contracting.

12. The Claimant is entitled to interest pursuant to section 35A of the Senior Courts Act 1981.

AND the Claimant claims: (1) Damages in the sum of £2,165,000; (2) Interest pursuant to section 35A of the Senior Courts Act 1981; (3) Further or other relief; and (4) Costs.

HARRIET STANFORD

Eldon Chambers

Statement of Truth

The Claimant believes that the facts stated in these Particulars of Claim are true. I am duly authorised by the Claimant to sign this statement.

Signed: Richard Calloway, Group General Counsel, for and on behalf of the Claimant. Dated: 6 February 2026.

SEALED — Issued by the Court 6 February 2026. The Claimant's solicitors are Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ (Ref: SW/TG/BRK-2271).